

		The Court orders that the record of Beverly Ray Sandoval regarding this eviction be sealed and removed from the public records search. The Court Clerk is directed to seal the record and remove the information from the public search methods.
2	30-2023-01333357 Oktogon Santa Ana, LLC vs. Price	The Court has read and considered the Defendants' Motion to Set Aside Default Judgment (ROA 50). The Court takes Judicial Notice of the Declaration in Support of Default Judgment by Court CCP 585(d) (ROA 36), Judgment -Unlawful Detainer (ROA 38), Proof of Service of Summons (ROA 15, 17, 19, 21, & 23) As a threshold matter, California Code of Civil Procedure § 473(b) gives the Court discretion to set aside a default judgment with certain requirements, including that the request "shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken." The Unlawful Detainer Judgment in this matter was entered on December 21, 2023; the Defendants did not file their motion to set aside default until June 16, 2026, which is two years, 5 months, and 27 days after the judgment was entered. Charles Price Jr. asserts that he was not a party to the lease agreement but merely an occupant. ROA 36 has attached to it a copy of the Lease Contract for the premises in dispute in the unlawful detainer proceeding. The Lease Contract dated February 26, 2022 lists the "parties" (all people signing the Lease Contract) as Katrina Price, Charles Price Jr., Charles Price Sr., and Shannon Price. No one is listed under "Occupants" on the Lease Contract. Charles Price Jr., along with his mother, father, and sister, signed the lease agreement electronically. California Evidence Code Section 647 creates a rebuttable presumption that a proof of service signed by a registered process server is true. It shifts the burden of proving lack of service to the defendant, rather than requiring the plaintiff to prove proper service. ROA 15 shows that Katrina Price was personally served by registered process server Justin Martin (Orange County #2655) on 7/2/2023 at 2:21 PM. ROA 17, 19, and 21 shows that Charles Sr., Charles Jr., and Shannon were served via substitute service on Katrina Price on the same date and mailed a copy of the summons and complaint. Defendants state, without any evidence to support their claim or to show their move-out date, that they were unaware of the court proceedings and moved out of the premises. The Court finds that the Defendants failed to rebut the presumption under Evidence Code section 647. The Court DENIES the Motion to Set Aside Default and Default Judgment. Plaintiff is ordered to provide notice of the Court's ruling.
6	30-2026-01561001 Yan vs. Wang	Matter will be continued until Wednesday, July 22, 2026 at 8:30 AM for Motion for Summary Judgment on the Court's own motion. The Court Clerk is to provide notice to the parties.